

## 24STCV25469 24STCV25469

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 24STCV25469 Hearing Date: August 25, 2026 Dept: 510

No.

9 - Francisca Esmeralda Medina, et al. v. Citiguard, Inc., et al.

Cross-Complainant

Primestor Development, LLC's Motion to Sever Cross-Complaint

Cros-Complainant Primestor Development, LLC moves to sever proceedings on its first amended cross-complaint against Cross-Defendant Citiguard, Inc. from the trial on Plaintiff's underlying complaint.

Primestor filed its operative first amended cross-complaint against Citiguard on May 21, 2026, alleging causes of action for (1) indemnity; (2) contribution; (3) apportionment; (4) declaratory relief; (5) express indemnity; (6) breach of contract; and (7) declaratory relief – duty to indemnify. Primestor argues that separately trying its cross-complaint after the resolution of Plaintiff's complaint would moot or significantly narrow the issues to be tried in any separate proceeding on the cross-complaint.

The Court has two concerns with the proposal.

First, it appears to the Court that this motion is premature. When this motion was initially filed, trial was set for September 28, 2026. Now, trial has been continued to May 3, 2027. Additional discovery and motion practice could narrow or eliminate the premise for the motion.

Second, while the Court understands the benefit of severing Primestor's equitable claims for later resolution, the Court does not see

any benefit of severing Primestor's legal claim for breach of contract from the trial on Plaintiff's complaint. Severing or bifurcating trials must "preserv[e] the right of trial by jury required by the Constitution or a statute of this state or of the United States." (CCP § 1048(a).) "Where legal and equitable issues are joined in the same action the parties are entitled to a jury trial on the legal issues." (Arciero Ranches v. Meza (1993) 17 Cal.App.4th 114, 123.) Trying the legal claim for breach of contract with the other legal issues appears more time efficient than seating a new jury.

The parties should be prepared to discuss these issues at the hearing on this motion. The Court reserves ruling on this issue until the date of the hearing.